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|    |                                                           | <p>filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents.</p> <p>Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.</p> <p><b>No earlier hearing date is available for this motion.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 16 | <p>Zazueta v. A Manouselis, Inc.</p> <p>2023-01324404</p> | <p><u>Plaintiff's Motion for Approval of PAGA Settlement</u></p> <p>The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$105,000 PAGA settlement. The court has the following questions and comments:</p> <ol style="list-style-type: none"> <li>1. In the September 11, 2025 order (ROA 80), the court stated that the "Released Parties" provision in the settlement agreement was overbroad, as it included unrelated, ambiguous and/or unidentified third parties. In the March 19, 2026 order (ROA 94), the court stated that the "Released Parties" provision in the addendum to the settlement agreement remained overbroad, as it continued to include unrelated, ambiguous and/or unidentified third parties, such as "affiliated companies, agents, managing agents," "servants," "indirect" owners, and "insurance companies, alleged joint employers and attorneys."</li> </ol> <p>The parties have revised the "Released Parties" provision in the second addendum to the settlement agreement to include "attorneys from Musick, Peeler &amp; Garrett LLP, attorneys from Clark Hill LLP, attorneys from Mooradian Law, APC and Tokio Marine HCC." Why are these law firms properly included in the release, and what consideration has each law firm provided for the release?</p> <ol style="list-style-type: none"> <li>2. The notice letter should define the Released Parties.</li> <li>3. A second copy of the proposed order and judgment should not be attached to the proposed order and judgment. ROA 109. The addendum attached to the proposed order and judgment as Exhibit B is not signed. The second addendum should be attached to the proposed order and judgment as an exhibit.</li> </ol> <p>The hearing on plaintiff's motion for approval is continued to <u>December 3, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (<a href="http://www.occourts.org">www.occourts.org</a>). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be</u></p> |

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|  |  | <p><u>submitted, rather than an “amended settlement agreement,” to streamline the court’s review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order).</p> <p>Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.</p> <p><b>No earlier hearing date is available for this motion.</b></p> |
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